

25NNCV07072 25NNCV07072

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Case Number: 25NNCV07072 Hearing Date: August 7, 2026 Dept: B

Hon. Victor Avila, Dept B

Motion for Issue/ Evidentiary/ Monetary

Sanctions Motion Name

Hearing Date: 8/7/26

CASE NO./NAME: 25NNCV07072/ Harvey Olen

Quinn, by and through his successor in interest, Beverly Rodriguez vs. Valley

Post-Acute and Rehab, LLC, et al.

Moving Party: Plaintiff Harvey Olen Quinn, by

and through his successor in interest, Beverly Rodriguez

Responding Party: Unopposed

Notice: Sufficient

Ruling: GRANT in part.

NOTICE

The Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to argue as to this matter/motion. The tentative ruling will

become the ruling of the court if no argument is received. Notice may be given either by email at or by telephone at (818) 260-8422.

Parties must appear on all other matters scheduled for this case.

BACKGROUND

This is an elder abuse case. Harvey Olen

Quinn by and through his successor in interest, Beverly Rodriguez (Plaintiff) moves the Court for an order imposing issue, evidentiary, or monetary sanctions against Defendant Valley Post-Acute and Rehab, LLC (Valley Post-Acute) in the amount of \$3,500 for failure to comply with the Court's May 1, 2026 Order compelling verified responses without objections to the Request for Production of Documents, Set Two (RPDs). As of July 31, 2026, no opposition has been filed.

LEGAL

STANDARD

Under Code of Civil Procedure section 2031.300, "[i]f a party ... then fails to obey the

order compelling

a response, the court may make those orders that are just, including the

imposition of an

issue sanction, an evidence sanction, or a terminating sanction under Chapter 7

(commencing with

Section 2023.010). In lieu of or in addition to that sanction, the court may

impose a

monetary sanction under Chapter 7 (commencing with Section 2023.010)." (Code Civ.

Proc., §

2030.290, subd. (c).)

The "court, after notice to any affected party, person, or attorney, and after an opportunity

for hearing, may
impose” monetary, issue, evidence, or terminating sanctions “against anyone

engaging in
conduct that is a misuse of the discovery process[.]” (Code Civ. Proc., §§
2023.030;

2023.030,
subds.(a)-(d).) Failing to respond or submit to an authorized method of
discovery and

disobeying a
court order to provide discovery are misuses of the discovery process. (Code
Civ.

Proc., §
2023.010, subds. (d) and (g).)

“The trial court has broad discretion in selecting discovery sanctions,
subject to reversal

only for abuse. The
trial court should consider both the conduct being sanctioned and its effect on
the party seeking discovery and, in choosing a sanction, should ‘attempt to
tailor the sanction to the harm caused by the withheld discovery.’” (Doppesv.
Bentley Motors, Inc. (2009) 174 Cal.App.4th967, 992.)

DISCUSSION

Plaintiff
seeks imposition of sanctions against Valley-Post Acute for their failure to
comply with the Court's May 1, 2026, Order. Plaintiff seeks a combination of
(1) monetary and evidentiary sanctions or (2) monetary and issue sanctions.
(Mot., pp. 2-3.) Alternatively, Plaintiff seeks (3) an order granting request
that Valley Post-Acute be ordered to produce verified responses to outstanding
discovery and monetary sanctions. (Mot., p. 4.)

Evidentiary Sanctions

Plaintiff moves

the Court to order Valley Post-Acute be precluded from presenting any evidence as to the following issues:

a. That

Valley Post-Acute had sufficient staff to meet the needs of its residents during the residency of Plaintiff on an ongoing basis in compliance with 22 Code of Regulations §72329.1;

b. That

Valley Post-Acute did not know that their staff who provided “nursing services”, as the term is defined in 22 California Code of Regulations §72311, to the Plaintiff were unfit to perform their job duties with Valley Post-Acute and employed them nonetheless;

c. That

Valley Post-Acute’s managing agents did not know of the unfitness of their staff who provided “Nursing Services” to the Plaintiff to perform their job duties at Valley Post-Acute; and

d. Such

actions by Valley Post-Acute were not the proximate cause of Plaintiff’s suffering from avoidable dehydration, hypernatremia, and ultimately sepsis, while she was a resident of the facility

When a party violates a discovery order, a trial court may prohibit the violating party from introducing evidence at trial that contradicts the opponent’s claims or supports the violating party’s defenses. (*Juarez v. Boy Scouts of America* (2000) 81 Cal.App.4th 377, 387.)

Evidentiary sanctions may be imposed only after a motion to compel is made and granted and the party to be sanctioned has failed to comply with that order. (*Karlsson v. Ford Motor Co.* (2006) 140 Cal.App.4th 1202, 1214.) However, violation of a discovery order is not a prerequisite to evidentiary sanctions when the offending party has engaged in a pattern of willful discovery abuse that causes the unavailability of evidence. (*Id.* at p. 1215.)

In *Young v. Rosenthal* (1989) 212

Cal.App.3d 96, a party was precluded from testifying after refusing to cooperate with the taking of his deposition. As a result of having failed to comply with the trial court's discovery order only once, the trial court granted a motion for issue and evidence sanctions ordering that certain facts be deemed established according to Plaintiff's claims and that severe evidentiary limitations be placed on the defendant at trial. (Young v. Rosenthal (1989) 212 Cal.App.3d 96, 104-108.)

Here Plaintiff argues that Valley Post-Acute has not complied with the May 1, 2026, Minute Order Compelling Defendant to identify and produce documents pursuant to Request for Identification and Production of Documents, Set Two and ordering sanctions in the amount of \$960. (See 5/1/26 Minute Order.) The documents and sanctions were due to Plaintiff by May 21, 2026. (Garcia Decl., ¶ 4.) On June 14, 2026, Plaintiff sent Valley Post-Acute a letter advising them of the consequences of failing to respond to discovery and unilaterally afforded them an extension until June 22, 2026. (Garcia Decl., ¶ 6.) As of June 29, 2026, Valley Post-Acute has not provided answers or payment of sanctions. (Mot., p. 1; Garcia Decl., ¶ 7.)

The Court finds that Valley Post-Acute has engaged in conduct that is a misuse of discovery by disobeying the Court's May 1, 2026, Order. (See 5/1/26 Minute Order.) Over three months after the motion to compel was granted, Valley Post-Acute still has not produced the requested documents or paid the imposed sanctions. (Garcia Decl., ¶ 7.) Defendant has shown willful and serious abuse of the discovery process and has not opposed this motion or other discovery-based motions filed by Plaintiff in this action.

Moreover, this misuse of discovery is not an isolated incident. The Court previously granted and imposed monetary sanctions against Valley Post-Acute after Plaintiff filed a Motion to Compel Further Responses to several discovery requests. (See 2/6/26 Minute Order; See 7/17/26 Minute Order.) An evidentiary sanction is necessary to compel compliance because Defendant has shown monetary sanctions alone are insufficient to ensure Defendant complies with this Court's orders. Therefore, Valley Post-Acute is prevented from introducing evidence as to the following:

a. That

Valley Post-Acute had sufficient staff to meet the needs of its residents during the residency of Plaintiff on an ongoing basis in compliance with 22 Code of Regulations §72329.1;

b. That

Valley Post-Acute did not know that their staff who provided “nursing services”, as the term is defined in 22 California Code of Regulations §72311, to the Plaintiff were unfit to perform their job duties with Valley Post-Acute and employed them nonetheless;

c. That

Valley Post-Acute’s managing agents did not know of the unfitness of their staff who provided “Nursing Services” to the Plaintiff to perform their job duties at Valley Post-Acute; and

d. Such

actions by Valley Post-Acute were not the proximate cause of Plaintiff’s suffering from avoidable dehydration, hypernatremia, and ultimately sepsis, while she was a resident of the facility

Issue

Sanctions

Plaintiff moves

the Court to order Valley Post-Acute be precluded from presenting any evidence as to the following issues:

a. That

Valley Post-Acute failed to have sufficient staff to meet the needs of its residents during the residency of Plaintiff on an ongoing basis in violation of 22 Code of Regulations §72329.1 (as alleged in the operative Complaint in ¶¶ 8, 9, 10, 11, 12, 13, 14, 15, 37, 43, 50, 51, 63, 65, 67, 70, 72, 73, 74, 76, 77, 84, 85, 86, 87, 88, and 90 for example) such as to constitute “recklessness” pursuant to the Elder Abuse and Dependent Adult Civil Protection Act (EADACPA);

b. That

Valley Post-Acute knew that their staff who provided “nursing services”, as the term is defined in 22 California Code of Regulations §723112, to the Plaintiff were unfit to perform their job duties with Valley Post-Acute and employed them nonetheless and in disregard of this knowledge;

c. That

in so doing Valley Post-Acute’s managing agents knew of the unfitness of their

staff who provided “Nursing Services” to the Plaintiff (as is alleged in the Complaint at ¶¶ 8, 70, 71, 72, 73, 74, 76, and 92, for example) to perform their job duties at Valley Post-Acute and employed them with a knowing disregard for the rights and safety of Plaintiff;

d. Such

action by Valley Post-Acute was the proximate cause of Plaintiff’s suffering from avoidable open coccyx open sore, while he was a resident of the facility, denying Plaintiff from necessary care and treatment.

In light of this Court’s ruling on Plaintiff’s request for evidentiary sanctions, Plaintiff’s request in the alternative for issue sanctions is denied.

Monetary Sanctions

In addition to or in lieu of any other sanction, the court may order the disobedient party or counsel responsible or both to pay the reasonable expenses, including attorney fees, incurred as a result of the failure to obey (including fees on the sanctions motion). (Code Civ. Proc. § 2023.030, subd. (a).)

Plaintiff seeks sanctions in the amount of \$3,500.00. Plaintiff’s counsel declares that a paralegal spent 1.5 hours preparing the draft of this motion and supporting declarations at a rate of \$150.00 per hour. (Garcia Decl., ¶ 9.) Plaintiff’s counsel declares that he spent more than 1.0 hour preparing and finalizing the moving papers and expects to spend 3.0 additional hours considering the opposition papers, preparing a reply, and attending the hearing at a rate of \$1,000 per hour. (Ibid.) Plaintiff’s counsel also declares spending at least \$750.00 in Court Reporter fees and \$60.00 in filing fees for this motion. (Ibid.) Nonetheless, counsel limits the reimbursement request to \$3,500.00. (Ibid.)

Here, the Court will use its discretion and reduce the monetary sanctions as follows: 1.0 hour for drafting at a paralegal rate of \$150.00 per hour for a total of \$150.00; plus 0.5 hours reviewing the motion at an attorney rate of \$1,000 per hour for a total of \$500.00; plus the \$60.00 filing fee for the instant motion and a reporter fee of \$750 for a total of \$810.00 in additional fees. This results in a total of \$1,460.00

in monetary sanctions against Valley Post-Acute and their counsel.

Accordingly, the motion is GRANTED in part.

CONCLUSION

AND ORDER

Plaintiff's motion for evidentiary
sanctions is GRANTED.

Plaintiff's motion for issue sanctions is
DENIED.

Plaintiff's motion for monetary sanctions
is GRANTED in the amount of \$1,460.00.

MOVING PARTY is to give notice and provide
a proposed order consistent with this ruling within 15 days from this date.